

United Nations Human Rights Council (UNHRC)

Study Guide

**AGENDA: The promotion and protection of all human rights:
Ensuring the accountability of state actors for the safeguarding
of civilian life and fundamental freedoms in zones of active
military escalation.**

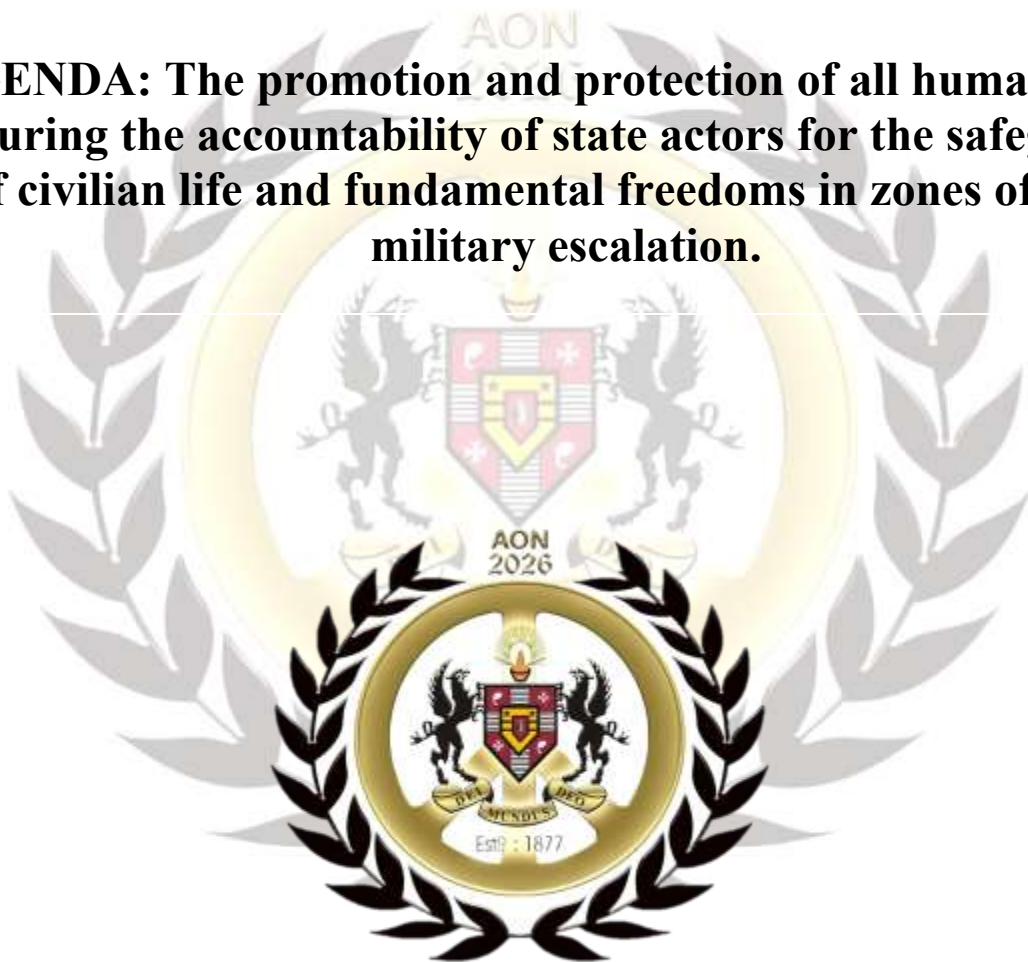


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Letter from the Executive Board

Dear Delegates,

On behalf of the Executive Board of the United Nations Human Rights Council at CBS-AON 2026, it is our privilege to extend a warm welcome to each one of you. Over the course of this conference, you will step into the role of human rights defenders, advocates, and diplomats, tasked with navigating some of the most pressing and morally charged challenges of our time.

In the UNHRC, every word you speak carries the potential to shape lives. The discussions here will test your ability to balance national interests with universal rights, to reconcile political realities with moral imperatives, and to craft resolutions that do more than fill pages; they must inspire real-world change. By no means should you limit your research to this study guide, and we expect from members of this committee that you respect everyone's analysis, maintain general decorum, and most importantly, understand the gravity of these issues and discuss practical strategies to achieve the target at hand. We look forward to witnessing the depth of your research, the sharpness of your negotiation, and the empathy in your diplomacy.

Understanding both the importance and complexity of this agenda, we strongly recommend you be prepared and well-researched in committee and, at the same time, request you to participate at all times, making it a learning experience for all of us. We shall follow a strict and coherent 0% AI usage policy inside the committee during the council simulations. We strongly hope that you all will come prepared and motivated to discuss the situation at hand, brainstorm together to find solutions to the same, apply legal frameworks, and, in the process, take back a lot from the committee. Our goal for you in this committee is to have an enriching experience by learning the art of diplomacy and, at the same time, see you solve real-life problems happening in this world. We look forward to seeing you all in action. All the best for the conference.

May this experience not only hone your skills as future leaders but also strengthen your conviction in the shared responsibility to uphold human rights for all. Besides, the Executive Board is free to accommodate unconventional ways beyond ROPs to provide a unique experience.

We look forward to seeing you!

Regards,
The Executive Board,
UNHRC.

1. A Note on This Guide and the Agenda

This background guide is designed as a research foundation rather than an exhaustive account. It maps the legal architecture, the institutional machinery, the geopolitical fault lines, and the contemporary conflict record that together define the agenda before this Council. Delegates are expected to treat it as a launching point: the most persuasive interventions in committee will rest on independent reading of the primary sources cited throughout, on familiarity with the specific positions of the State each delegate represents, and on a precise command of the legal vocabulary that separates rhetoric from argument in this subject area.

The agenda sits at the intersection of three bodies of obligation that are frequently conflated in political debate but remain analytically distinct: international human rights law, international humanitarian law, and the law of State responsibility. The phrase "zones of active military escalation" is deliberately broad. It captures international armed conflicts between States, non-international armed conflicts between States and organized armed groups, situations of belligerent occupation, and the grey zone of internal disturbances that fall below the legal threshold of armed conflict but still generate mass civilian harm. Each of these situations triggers a different combination of legal regimes, a different set of available accountability mechanisms, and a different geopolitical calculus inside the Council. A delegate who treats them as interchangeable will struggle to draft operative language that survives scrutiny.

The central tension that animates the agenda is the gap between obligation and enforcement. The substantive rules protecting civilian life are among the most widely ratified in the entire corpus of international law. The mechanisms for holding State actors accountable when those rules are violated remain partial, politicized, and dependent on the cooperation of the very States whose

conduct is in question. Closing that gap, in the specific context of ongoing hostilities where the harm is occurring in real time rather than in retrospect, is the practical problem this Council is asked to address.

2. The Mandate and Machinery of the Human Rights Council

2.1 Origins and Legal Basis

The Human Rights Council was established by General Assembly Resolution 60/251 on 15 March 2006, replacing the Commission on Human Rights, a body that had operated since 1946 but had lost credibility through the perception that States with poor records sought membership precisely to shield themselves from scrutiny. The Council is a subsidiary organ of the General Assembly. This institutional placement is significant and is frequently misunderstood. The Council does not derive its authority from the Security Council, it is not a principal organ of the United Nations, and its resolutions do not carry the binding force that Chapter VII Security Council resolutions can possess. Its authority is recommendatory, persuasive, and reputational rather than coercive (United Nations General Assembly, 2006).

The Council is composed of forty-seven Member States elected directly and individually by secret ballot of the General Assembly. Seats are distributed according to equitable geographical representation: thirteen for the Group of African States, thirteen for the Group of Asia-Pacific States, six for the Group of Eastern European States, eight for the Group of Latin American and Caribbean States, and seven for the Group of Western European and Other States. Members serve three-year terms and cannot serve more than two consecutive terms. Resolution 60/251 instructs the Assembly to take into account a candidate State's contribution to the promotion and protection

of human rights when voting, and it created the possibility of suspending the membership rights of a Council member that commits gross and systematic violations, a power exercised against Libya in 2011 and invoked in debates concerning the Russian Federation in 2022 (United Nations General Assembly, 2006).

2.2 What the Council Can and Cannot Do

Understanding the limits of the Council's competence is essential to drafting realistic and legally coherent resolutions. The Council can do the following. It can adopt resolutions and decisions that express the collective position of the international community on a human rights situation. It can establish and renew the mandates of investigative bodies, including commissions of inquiry, fact-finding missions, and independent expert mechanisms. It can create and renew the mandates of Special Procedures, meaning special rapporteurs, independent experts, and working groups. It can conduct the Universal Periodic Review of every Member State. It can hold special sessions and urgent debates in response to emerging crises. It can request reports from the High Commissioner for Human Rights and recommend that situations be referred elsewhere within the United Nations system.

The Council cannot do the following. It cannot authorize the use of force, impose sanctions, or deploy peacekeepers, all of which are powers reserved to the Security Council under the Charter. It cannot issue legally binding orders to States. It cannot prosecute individuals or impose criminal penalties, functions that belong to courts and tribunals. It cannot, on its own authority, refer a situation to the International Criminal Court, since under the Rome Statute that referral power belongs to the Security Council or arises through a State Party referral or the Prosecutor's own initiative. The Council's investigative bodies collect and preserve evidence and make legal

findings, but those findings are not judgments and carry no automatic enforcement consequence. Delegates who draft operative clauses purporting to exercise any of these reserved powers will have written language that is *ultra vires*, meaning beyond the Council's authority, and a competent dais will treat such clauses as non-starters.

This division of competence is not a technicality. It is the central structural fact that shapes everything the Council does on this agenda. Because the Council cannot compel, its principal instruments are documentation, exposure, the creation of evidentiary records that outlast the conflict, and the mobilization of political pressure that may eventually feed into a forum with harder enforcement teeth, whether a domestic court exercising universal jurisdiction, the International Criminal Court, the International Court of Justice, or a future *ad hoc* tribunal.

2.3 The Council's Position in the Wider Institutional Landscape

The Council does not operate in isolation. It is one node in a dense network of human rights institutions, and effective resolutions tend to be those that connect the Council's recommendatory authority to the harder mechanisms elsewhere in the system. The following actors are the most important for this agenda.

Body	Relationship to the Council	Relevance to the Agenda
Office of the High Commissioner for Human Rights (OHCHR)	The standing UN Secretariat office that services the Council, staffs investigations, and is led by the High Commissioner. Reports to the Council and the Secretary-General.	Monitors conflicts in real time, issues verified casualty figures and public statements, and provides the institutional spine for commissions of inquiry and fact-finding missions.
Special Procedures	Independent experts (Special Rapporteurs, Working Groups) appointed by the Council. They serve in their personal capacity and are not UN staff.	Thematic mandates (extrajudicial executions, torture, counter-terrorism and human rights, protection of civilians, internally displaced persons) and country mandates produce authoritative reporting on escalation zones.

Body	Relationship to the Council	Relevance to the Agenda
Universal Periodic Review (UPR)	A Council mechanism reviewing the record of every UN Member State on a roughly four-to-five-year cycle.	Provides a recurring, peer-driven accountability moment where a State's conduct in conflict can be raised even absent a dedicated mandate.
Treaty Bodies	Committees monitoring core human rights treaties (for example the Human Rights Committee for the ICCPR). Independent of the Council.	Authoritative interpretation of substantive obligations, including the extraterritorial reach of human rights law and the rules on derogation during emergencies.
Security Council	A principal organ with binding Chapter VII powers. Separate from and superior in enforcement capacity to the Human Rights Council.	Holds the powers the Council lacks: sanctions, force authorization, peacekeeping, and ICC referral. The veto frequently blocks action, pushing accountability work toward the Human Rights Council.
International Court of Justice (ICJ)	The principal judicial organ of the UN. Adjudicates disputes between States and issues advisory opinions.	Determines State responsibility for breaches of treaties such as the Genocide Convention. Provisional measures can be ordered against a State during ongoing hostilities.
International Criminal Court (ICC)	A permanent treaty-based court, not a UN organ, prosecuting individuals for genocide, crimes against humanity, war crimes, and aggression.	Holds individuals criminally accountable. Council investigations frequently generate evidence and legal analysis that inform ICC work.
Investigative / Accountability Mechanisms (IIM-type)	Standing evidence-collection bodies created by the General Assembly or Council (Syria IIM, Myanmar IIMM, and newer bodies on Afghanistan).	Bridge the gap between fact-finding and prosecution by building case files to evidentiary standards usable in national and international courts.

2.4 The Council's Tools in Detail

Commissions of Inquiry and Fact-Finding Missions

These are the Council's most consequential instruments on this agenda. A commission of inquiry is a temporary, independent body, usually composed of three eminent persons supported by OHCHR investigators, mandated to establish the facts of a situation, to identify those responsible where possible, and to make recommendations. Their reports apply legal standards, characterize conduct as violations or as international crimes, and preserve evidence. They do not

deliver verdicts, and they typically operate without the cooperation of the State under investigation, relying on satellite imagery, remote interviews with witnesses and survivors, open-source verification of photographs and video, forensic analysis, and documentary evidence. Their credibility rests on methodological rigor, including corroboration requirements and a defined standard of proof, often "reasonable grounds to believe."

The practical value of these bodies is threefold. First, they create an authoritative historical record at a moment when warring parties are actively contesting the facts. Second, they preserve evidence that would otherwise be lost, degraded, or destroyed, which is decisive for any future prosecution that may occur years or decades later. Third, they generate political pressure by attaching the institutional authority of the United Nations to specific legal characterizations of conduct.

Special Sessions and Urgent Debates

When a crisis erupts between regular sessions, one third of the Council's membership can request a special session. These sessions are the Council's rapid-response mechanism and are directly relevant to the "active escalation" framing of this agenda. They have been convened repeatedly in recent years, including on Sudan in November 2025 in response to the fall of El Fasher and the atrocities that followed (European External Action Service, 2025). Urgent debates serve a similar function within a regular session. Both produce resolutions, but their real significance lies in compressing the Council's deliberative timeline to match the pace of events on the ground.

Resolutions: Country-Specific versus Thematic

The Council adopts two broad categories of resolution relevant here. Country-specific resolutions address a named situation, establish or renew an investigative mandate, and condemn or call for specific conduct. Thematic resolutions address a cross-cutting issue, such as the protection of civilians, the human rights of internally displaced persons, or the relationship between counter-terrorism and human rights, without naming a particular State. Country-specific resolutions are politically harder to pass because they name and shame, and they are frequently the site of the sharpest geopolitical contestation. Thematic resolutions are easier to pass by consensus but risk producing language so general that it commits no one to anything. A sophisticated delegate understands that the choice between these two registers is itself a strategic decision.

3. The International Legal Framework

3.1 Two Regimes, One Battlefield: IHRL and IHL

Two distinct legal regimes govern the protection of civilian life in zones of escalation, and the relationship between them is the single most important conceptual point in this entire agenda. They are international human rights law and international humanitarian law.

International human rights law (IHRL) is the body of law protecting the inherent dignity of every person at all times, in peace and in war. Its foundational instruments include the Universal Declaration of Human Rights (1948), the International Covenant on Civil and Political Rights (1966), and the International Covenant on Economic, Social and Cultural Rights (1966), supplemented by treaties on torture, racial discrimination, the rights of the child, and enforced disappearance. IHRL binds a State principally in its relationship with persons under its jurisdiction.

It protects the right to life, the prohibition of torture, liberty and security of person, fair trial, and freedom of expression, assembly, and association, among others.

International humanitarian law (IHL), also called the law of armed conflict or *jus in bello*, is the body of law that applies specifically once an armed conflict exists. Its foundational instruments are the four Geneva Conventions of 1949 and their Additional Protocols of 1977 (Protocol I governing international armed conflict and Protocol II governing non-international armed conflict), together with the Hague Regulations on the conduct of hostilities and a substantial body of customary law. IHL accepts that lawful killing occurs in war and seeks not to prohibit hostilities but to limit the suffering they cause, balancing military necessity against humanity.

When Each Regime Applies and How They Interact

IHL applies at all times. IHL applies only during armed conflict. In a zone of active escalation, therefore, the two regimes apply simultaneously and overlap. The doctrine that reconciles them is **lex specialis derogat legi generali**, the principle that the more specific rule governs the more general one in case of conflict. The International Court of Justice articulated this in its 1996 advisory opinion on the legality of nuclear weapons and again in its 2004 advisory opinion on the wall in the Occupied Palestinian Territory, holding that the right to life under human rights law continues to apply in armed conflict, but what counts as an "arbitrary" deprivation of life must be determined by reference to the applicable rules of humanitarian law (International Court of Justice, 1996; International Court of Justice, 2004).

The practical consequence is decisive. The killing of a combatant who poses no immediate threat might be an arbitrary deprivation of life if assessed purely under a law-enforcement human rights paradigm, but it may be entirely lawful under the conduct-of-hostilities paradigm of IHL.

Conversely, the targeting of a civilian is unlawful under both regimes. The contemporary scholarly and judicial consensus is not that one regime displaces the other wholesale, but that the two are complementary and mutually informing, with IHL supplying the specialized content where the situation is genuinely one of hostilities, and IHRL retaining full force in matters such as detention, treatment of persons in custody, and conduct away from the immediate battlefield.

Derogation and Non-Derogable Rights

Article 4 of the ICCPR permits a State to derogate from certain obligations "in time of public emergency which threatens the life of the nation," provided the measures are strictly required by the exigencies of the situation, are non-discriminatory, and are formally notified. Armed conflict is the paradigmatic such emergency. Crucially, however, a core of rights can never be suspended under any circumstances. These non-derogable rights include the right to life (subject to the lawful conduct of hostilities), the prohibition of torture and cruel, inhuman, or degrading treatment, the prohibition of slavery, and the prohibition of retroactive criminal punishment. The existence of this non-derogable core is what prevents a State from declaring an emergency and thereby escaping the most fundamental constraints on its treatment of civilians (United Nations Human Rights Committee, 2001).

The Extraterritorial Reach of Human Rights Obligations

A recurring point of contestation is whether a State's human rights obligations follow it when its forces operate abroad. The dominant interpretation, advanced by treaty bodies and regional human rights courts, is that obligations attach wherever a State exercises effective control, whether over a territory (the spatial model) or over a person (the personal model, for example a detainee in custody). Some powerful States contest the broad reading, arguing that their human rights treaty

obligations are territorially bounded. This dispute is not academic: it determines whether a State can be held to human rights standards for the conduct of its forces in an occupied territory or in extraterritorial operations, and it recurs in every case study in this guide.

3.2 The Cardinal Principles of the Conduct of Hostilities

Where IHL governs targeting decisions, four cardinal principles control. They are derived from treaty and customary law and bind all parties to a conflict, State and non-State alike.

1. **Distinction.** Parties must at all times distinguish between combatants and military objectives on one hand and civilians and civilian objects on the other, and may direct attacks only against the former. This is the foundational rule of the entire system, codified in Article 48 of Additional Protocol I, and the deliberate targeting of civilians is a war crime.
2. **Proportionality.** An attack expected to cause incidental civilian harm that would be excessive in relation to the concrete and direct military advantage anticipated is prohibited. This is not a numerical formula but a contextual judgment, and disputes over proportionality dominate the legal contestation of almost every airstrike and bombardment in the case studies that follow.
3. **Precaution.** Parties must take all feasible precautions to spare civilians, including verifying targets, choosing means and methods of attack to minimize civilian harm, giving effective advance warning where circumstances permit, and cancelling or suspending an attack if it becomes apparent the target is civilian or the harm would be disproportionate.
4. **Humanity / prohibition of superfluous injury.** It is prohibited to employ weapons, projectiles, and methods of warfare of a nature to cause superfluous injury or unnecessary

suffering. This principle underpins specific prohibitions on chemical and biological weapons, blinding lasers, and other categories.

To these must be added the absolute prohibition on **indiscriminate attacks**, meaning attacks not directed at a specific military objective or employing means that cannot be so directed, and the prohibition on **starvation of civilians as a method of warfare**, which has acquired renewed salience in the siege warfare seen in Gaza, in the El Fasher siege in Sudan, and elsewhere.



4. Civilians, Combatants, and Belligerents: The Conceptual Core

The agenda asks delegates to grapple with a set of categories that are precise in law but routinely blurred in political discourse and on the modern battlefield: who is a civilian, who is a combatant, what is a belligerent, and how does a civilian lose protection. These distinctions are not pedantry. They determine who may lawfully be killed, who must be spared, who may be detained and on what basis, and who bears criminal responsibility when the lines are crossed. The collapse of these distinctions in contemporary asymmetric and urban warfare is, in many respects, the deepest structural problem the agenda confronts.

4.1 The Civilian

International humanitarian law defines the civilian negatively. Under Article 50 of Additional Protocol I, a civilian is any person who is not a combatant, that is, anyone who does not belong to the armed forces of a party to the conflict and is not a member of an organized armed group with a continuous combat function. The definition is deliberately residual: if there is doubt whether a person is a civilian, that person is to be treated as a civilian. Civilians enjoy general protection against the dangers arising from military operations and may not be made the object of attack. This protection is the bedrock of the whole system, and the entire edifice of civilian safeguarding the agenda addresses depends on it.

Civilians retain their protection "unless and for such time as they take a direct part in hostilities," a qualification examined in detail below. The civilian population as a whole, and individual civilians, are also protected by a series of specific prohibitions: they may not be the object of reprisals, may not be used as human shields, may not be subjected to collective

punishment, and may not be forcibly displaced except where their security or imperative military reasons demand it.

4.2 The Combatant and the Privilege of Belligerency

A combatant is a member of the armed forces of a party to an international armed conflict, other than medical and religious personnel. The status carries a double-edged character that is essential to understand. On one hand, combatants are legitimate military targets and may be attacked at any time until they surrender or are placed hors de combat, meaning out of combat through wounds, sickness, or capture. On the other hand, combatants enjoy what is called the **combatant's privilege** or **belligerent privilege**: they may lawfully participate in hostilities, and they cannot be prosecuted for lawful acts of war, such as killing enemy soldiers, that would be crimes in peacetime. When captured, they are entitled to prisoner-of-war status and its protections.

This privilege is the legal heart of what it means to be a "belligerent" in the technical sense. A **privileged belligerent** is a person entitled to participate directly in hostilities and to claim combatant immunity and prisoner-of-war status. To qualify, the Third Geneva Convention and customary law require that the person belong to an organized armed force under responsible command, carry arms openly, wear a fixed distinctive sign recognizable at a distance, and conduct operations in accordance with the laws and customs of war. These conditions exist precisely to preserve the distinction between fighters and civilians: a fighter who hides among civilians and refuses to distinguish himself endangers the entire civilian population by eroding the basis on which their protection rests.

4.3 The Unprivileged or Unlawful Belligerent

This is one of the most contested categories in modern international law, and the agenda specifically asks how civilians come to occupy it. An **unprivileged belligerent**, also termed an unlawful combatant or unprivileged combatant, is a person who participates directly in hostilities without meeting the conditions for combatant status and therefore without entitlement to the combatant's privilege. The category is not found by name in the Geneva Conventions; it is a description of a factual and legal situation rather than a formal status, and its precise legal consequences remain disputed.

A civilian becomes an unprivileged belligerent by directly participating in hostilities. The crucial legal point is that such a person does not thereby acquire combatant status or its privileges. Three consequences follow. First, for the duration of their direct participation, they lose their protection against attack and may lawfully be targeted. Second, because they never held the combatant's privilege, they enjoy no immunity for their hostile acts and may be prosecuted under domestic law for the violence they commit, including for acts that would be lawful if committed by a privileged combatant. Third, and this is the protection that even an unprivileged belligerent retains, they remain entitled to fundamental guarantees of humane treatment: they may not be tortured, may not be summarily executed, and are entitled to a fair trial. The notion, advanced in some quarters in the early years of the so-called global war on terror, that an unlawful combatant falls into a legal black hole devoid of all protection, has been rejected by the weight of authority. Common Article 3 of the Geneva Conventions and the customary minimum guarantees apply to everyone, whatever their status (International Committee of the Red Cross, 2009).

4.4 Direct Participation in Hostilities: How Civilians Lose Protection

The pivotal mechanism by which a protected civilian becomes a lawful target, and potentially an unprivileged belligerent, is **direct participation in hostilities (DPH)**. The phrase appears in Article 51(3) of Additional Protocol I and Article 13(3) of Additional Protocol II, which provide that civilians enjoy protection "unless and for such time as they take a direct part in hostilities." The treaties do not define the phrase, and the resulting interpretive uncertainty is one of the most consequential gaps in the law, because it determines the boundary between a protected person and a legitimate target.

The most influential attempt to fill this gap is the International Committee of the Red Cross Interpretive Guidance on the Notion of Direct Participation in Hostilities, published in 2009. It is not a binding instrument, and several of its conclusions are contested by States and scholars, but it provides the analytical framework most commonly invoked. The Guidance proposes that a specific act constitutes direct participation only if it cumulatively meets three criteria (International Committee of the Red Cross, 2009).

5. **Threshold of harm.** The act must be likely to adversely affect the military operations or military capacity of a party to the conflict, or to inflict death, injury, or destruction on persons or objects protected against direct attack.
6. **Direct causation.** There must be a direct causal link between the act and the harm likely to result, either from that act or from a coordinated military operation of which the act is an integral part. Activities that merely sustain or build the general war effort, such as producing weapons in a factory or providing food and financing, are war-sustaining but not directly causal, and do not by themselves strip a civilian of protection.

7. **Belligerent nexus.** The act must be specifically designed to support one party to the conflict to the detriment of another. Violence motivated by private ends, or harm caused incidentally, lacks the required nexus.

Two further elements of the framework are heavily contested and important for committee debate. The first is the **temporal scope** of the loss of protection, sometimes called the **revolving door** of protection. On the ICRC view, a civilian who directly participates loses protection only "for such time as" the participation lasts, regaining civilian protection in the intervals between specific acts. Critics, including a number of military lawyers, argue that this allows a so-called farmer by day, fighter by night to cycle in and out of immunity in a way that is operationally unworkable and that unfairly disadvantages the law-abiding party. The opposing view holds that a person who repeatedly participates, or who assumes a continuous combat function within an organized armed group, may be targeted on the same basis as a combatant for as long as that function persists, rather than only during discrete acts.

The second contested element is the ICRC's concept of **continuous combat function (CCF)**. To address organized armed groups in non-international armed conflicts, the Guidance proposes that members of such groups whose continuous function is to take a direct part in hostilities lose civilian protection for the entire duration of that membership, not merely during specific operations. This category is the practical functional equivalent of combatant status for non-State fighters, and it is the analytical hinge on which much modern targeting of non-State armed groups turns. It is also the point at which the risk to genuine civilians is most acute, because erroneous attribution of continuous combat function to a civilian results in that civilian being treated as a permanently lawful target.

Category	May be lawfully attacked?	Combatant's privilege / POW status?	Retains humane-treatment guarantees?
Civilian (not participating)	No, protected against direct attack	Not applicable	Yes, fully
Combatant (privileged belligerent)	Yes, until hors de combat or surrender	Yes, immunity for lawful acts of war; POW on capture	Yes
Civilian directly participating in hostilities	Yes, for such time as participation lasts	No privilege; prosecutable for hostile acts	Yes, fundamental guarantees and fair trial
Member of armed group with continuous combat function	Yes, for duration of that function (contested)	No privilege in non-international armed conflict	Yes, fundamental guarantees and fair trial
Person hors de combat (wounded, captured, surrendered)	No, attack is prohibited and is a grave breach	Depends on prior status	Yes, absolutely

4.5 Why the Distinctions Are Collapsing in Modern Warfare

The agenda's framing of "active military escalation" points to a structural crisis in the application of these categories. Several features of contemporary conflict erode the civilian-combatant distinction in practice even where it remains intact in law. Urban warfare embeds hostilities within dense civilian populations, so that lawful military objectives such as command posts, fighters, and weapons stores are physically interwoven with homes, hospitals, and shelters. Asymmetric conflict incentivizes weaker, often non-State parties to forgo distinctive insignia and to operate from within the civilian population, both because they cannot match a State's firepower in open battle and, in the worst cases, because civilian casualties can be exploited for propaganda. The proliferation of armed drones and remote and autonomous weapons relocates the human judgment that distinction and proportionality require, raising the question of whether a machine can perform the contextual assessment the law demands. Siege and starvation tactics target the civilian population as a means of pressuring the fighters among them. And the deliberate use of

human shields, prohibited under IHL, places the attacking party in the legal and moral dilemma the shielding party intends.

These dynamics do not change the law, but they make its application contested in almost every individual incident, and they are the practical reason that real-time civilian protection in escalation zones is so difficult to institutionalize. The legal categories assume a battlefield that modern conflict no longer reliably provides.



5. The Accountability of State Actors

Accountability is the operative concept of the agenda, and it is essential to be precise about what it means, because the term carries at least three distinct senses that are routinely confused. Accountability can mean the responsibility of the State as a legal person under the law of State responsibility. It can mean the criminal responsibility of individual State agents under international criminal law. And it can mean political and moral accountability through exposure, censure, and the historical record. Each operates through different mechanisms, applies different standards of proof, and produces different consequences. A resolution that calls vaguely for "accountability" without specifying which form it intends, before which forum, and through which mechanism, says very little.

5.1 State Responsibility

The law of State responsibility, codified most authoritatively in the International Law Commission's 2001 Articles on the Responsibility of States for Internationally Wrongful Acts (ARSIWA), provides that a State is responsible for an internationally wrongful act when conduct attributable to the State breaches an international obligation. Two elements are therefore required: attribution and breach (International Law Commission, 2001).

Attribution is the rule that links conduct to the State. The conduct of any State organ, including its armed forces, is attributable to the State. So too is the conduct of persons or entities exercising governmental authority, and the conduct of persons acting on the instructions of, or under the direction or control of, the State. This last point is decisive in conflicts fought through proxies and allied armed groups: a State may be responsible for the acts of a non-State armed group if it directs or effectively controls that group's operations. The contested standard of control, ranging from the

"effective control" test articulated by the International Court of Justice in the Nicaragua case and reaffirmed in the Bosnia Genocide case, to the looser "overall control" test applied by the International Criminal Tribunal for the former Yugoslavia, is one of the most litigated questions in this field and recurs in the Sudan and Ukraine case studies, where external State sponsorship of armed groups is alleged.

Breach is the violation of an obligation, whether arising from treaty or custom. Where the obligation breached is owed to the international community as a whole, an obligation erga omnes such as the prohibition of genocide, of aggression, of torture, and of the basic rules of humanitarian law, all States have a legal interest in compliance, and certain obligations rise to the level of peremptory norms, jus cogens, from which no derogation is permitted. The consequences of State responsibility include the obligation to cease the wrongful act, to offer guarantees of non-repetition, and to make full reparation through restitution, compensation, or satisfaction. State responsibility is adjudicated principally before the International Court of Justice, which can also indicate binding provisional measures while a case is pending, a power of acute relevance to ongoing hostilities.

5.2 Individual Criminal Responsibility

Distinct from the responsibility of the State is the criminal responsibility of the individuals who order or commit international crimes. The principle that individuals can be held criminally responsible under international law, regardless of domestic immunities, was established at Nuremberg and has been developed by the ad hoc tribunals for the former Yugoslavia and Rwanda, by hybrid courts, and by the permanent International Criminal Court established under the 1998

Rome Statute. The four core international crimes are genocide, crimes against humanity, war crimes, and the crime of aggression.

Two doctrines are especially important for holding State actors accountable in escalation zones. The first is **command or superior responsibility**, the principle that a military commander or civilian superior is criminally liable for crimes committed by subordinates where the superior knew or should have known of the crimes and failed to take reasonable measures to prevent them or to punish the perpetrators. This doctrine reaches up the chain of command to those who hold genuine authority, rather than confining liability to the foot soldier who pulls the trigger. The second is the rejection of the defence of **superior orders** for manifestly unlawful acts, and the irrelevance of **official capacity**: a head of State or government enjoys no substantive immunity before an international criminal court for these crimes, the basis on which the International Criminal Court has issued arrest warrants against sitting heads of State.

5.3 The Accountability Gap and the Architecture of Impunity

The defining problem of the agenda is the chasm between the density of substantive obligation and the weakness of enforcement, a chasm often described as the accountability gap or the culture of impunity. Several structural features sustain it.

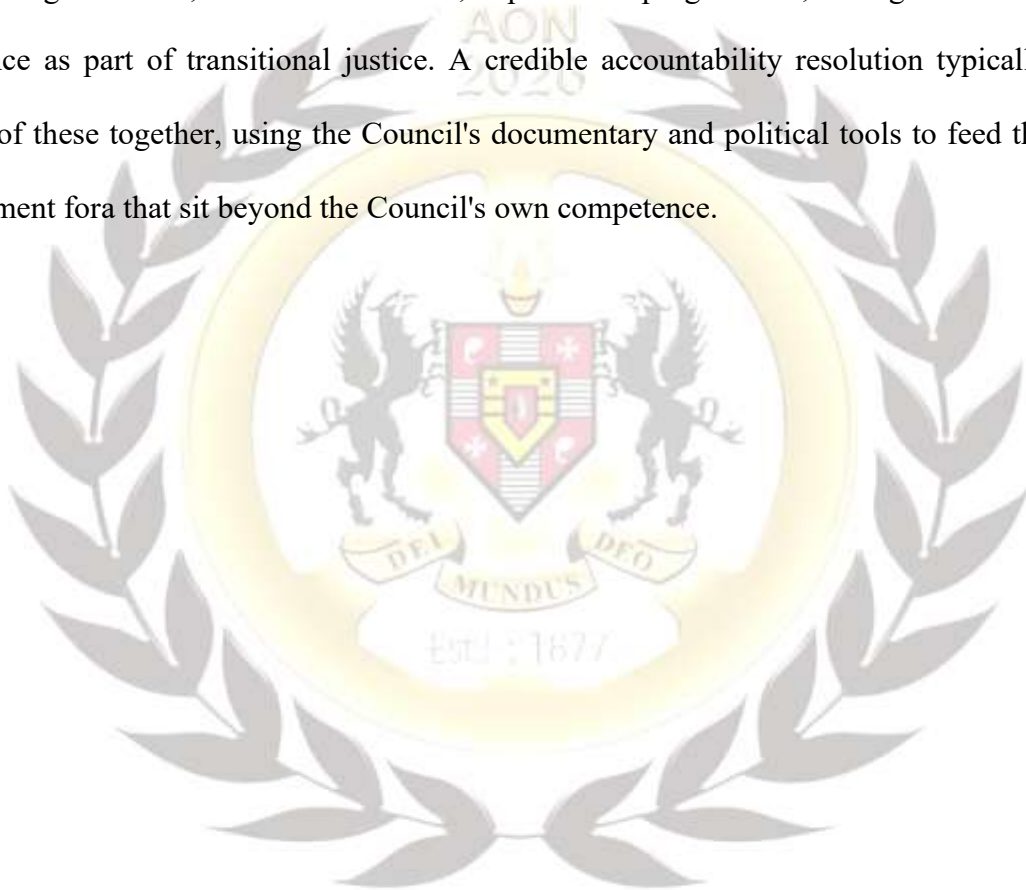
8. **The consent problem.** International courts and investigations generally depend on State cooperation. A State that controls the territory where crimes occur can deny investigators access, refuse to surrender suspects, and obstruct evidence collection. Commissions of inquiry routinely operate without the cooperation of the State under scrutiny, working entirely by remote methods.

9. **The Security Council bottleneck.** The single most powerful accountability lever, referral to the International Criminal Court for situations involving non-States Parties, lies with the Security Council, where any of the five permanent members can veto it. Referrals on Syria and on other situations have been blocked, leaving the Human Rights Council's softer mechanisms as the only available route.
10. **Jurisdictional fragmentation.** The International Criminal Court can act only where a State is a Party, has accepted jurisdiction, or the situation is referred by the Security Council. Powerful States that are not Parties, and States that have withdrawn or threatened to withdraw, sit outside its reach unless referred.
11. **The time lag.** Criminal accountability typically arrives years or decades after the harm, if at all. This is of little comfort to civilians being killed in real time, which is precisely why the agenda foregrounds protection during active escalation rather than only retrospective justice.
12. **Selective enforcement.** Accountability mechanisms are applied unevenly, with robust action against some situations and silence on others of comparable gravity. This selectivity, examined in the next section, corrodes the legitimacy of the entire system and is the principal grievance voiced by many States of the Global South.

5.4 The Spectrum of Accountability Mechanisms

Between the poles of binding judicial enforcement and pure political condemnation lies a spectrum of mechanisms that delegates should be able to deploy precisely in resolution language. Judicial mechanisms include the International Court of Justice for State responsibility, the International Criminal Court and ad hoc or hybrid tribunals for individual responsibility, and

domestic courts exercising universal jurisdiction over the gravest crimes wherever committed. Quasi-judicial and investigative mechanisms include commissions of inquiry, fact-finding missions, and the newer standing investigative and accountability mechanisms that build prosecution-ready case files. Non-judicial mechanisms include monitoring and public reporting by the High Commissioner, the Universal Periodic Review, targeted sanctions imposed by States or regional organizations, truth commissions, reparations programmes, and guarantees of non-recurrence as part of transitional justice. A credible accountability resolution typically chains several of these together, using the Council's documentary and political tools to feed the harder enforcement fora that sit beyond the Council's own competence.



6. The Geopolitical Dimension

The agenda cannot be understood as a purely legal problem. The law of civilian protection is clear in its essentials; the difficulty is that its application and enforcement are mediated through an international political order in which power, alliance, and strategic interest routinely override legal logic. The geopolitics of this agenda is, in large part, the geopolitics of selectivity, sovereignty, and the contested legitimacy of the international human rights project itself.

6.1 The Permanent Members and the Politics of the Veto

The structural fact that shapes accountability geopolitics is the division of labour, and of power, between the Security Council and the Human Rights Council. The Security Council possesses the binding enforcement tools, but its five permanent members each hold a veto, and each has used or threatened it to shield itself or an ally from accountability. The United States has historically shielded Israel; the Russian Federation and China have shielded Syria and have blocked or diluted action on other situations; and the result is that the situations of greatest geopolitical sensitivity are frequently those where the Security Council is most paralysed. This paralysis pushes accountability work onto the Human Rights Council, precisely because the Council operates by majority vote without a veto, which is why so much of the substantive accountability activity of the United Nations on these conflicts now occurs in Geneva rather than New York. The Human Rights Council has become, by default, the forum of first resort for situations the Security Council cannot or will not address.

6.2 Selectivity, Double Standards, and the Legitimacy Critique

The most persistent and corrosive critique of the international human rights system, voiced across the political spectrum but with particular force by States of the Global South, is that of selectivity and double standards. The charge is that powerful States and their allies escape scrutiny while weaker States are subjected to country-specific mandates, and that the legal vocabulary of human rights is wielded as an instrument of geopolitical pressure rather than applied impartially. This critique gains traction whenever the system appears to respond robustly to violations by adversaries of the dominant powers while responding tepidly, or not at all, to violations by those powers or their partners. The perception of double standards is not merely a talking point; it materially weakens the system, because States subjected to scrutiny can plausibly delegitimize the findings against them by pointing to comparable situations that go unaddressed.

A related critique concerns the tension between universal human rights and the principle of State sovereignty and non-interference in internal affairs enshrined in Article 2(7) of the Charter. Many States, including major powers and a substantial bloc of developing countries, are wary of country-specific mandates and intrusive investigations on the ground that they erode sovereignty and open the door to politically motivated interference. This camp tends to favour dialogue, technical assistance, and capacity-building over condemnation, and to resist the establishment of investigative mechanisms over the objection of the State concerned. The opposing camp, comprising many Western and like-minded States and a broad coalition of civil society, holds that sovereignty cannot be a shield for atrocity and that the international community has a legitimate interest, and under the doctrine of the responsibility to protect a qualified responsibility, in the protection of populations from the gravest crimes.

6.3 The Responsibility to Protect

The responsibility to protect (R2P), endorsed by the 2005 World Summit Outcome, holds that each State bears the primary responsibility to protect its population from genocide, war crimes, ethnic cleansing, and crimes against humanity; that the international community should assist States in meeting this responsibility; and that where a State manifestly fails to protect its population, the international community should take timely and decisive action through the United Nations. R2P is politically contested. Its invocation to justify the 2011 intervention in Libya, and the perception among some States that the protection mandate was exceeded to pursue regime change, produced a lasting backlash that has made subsequent collective action harder to mobilize. The Human Rights Council nonetheless advances the preventive and early-warning dimensions of R2P through its monitoring and investigative mechanisms, which can sound the alarm before atrocities reach their peak (Global Centre for the Responsibility to Protect, 2025).

6.4 Regional Blocs and Shifting Coalitions

Voting on this agenda does not break down along a simple democratic-versus-authoritarian axis. It is shaped by overlapping and sometimes cross-cutting coalitions. A coalition of Western European and Other States and like-minded partners generally champions country-specific mandates and robust investigative bodies. A coalition often led by China and supported by a range of States emphasizes sovereignty, non-interference, dialogue, and the indivisibility of civil-political and economic-social rights, and is sceptical of country mandates. The Organisation of Islamic Cooperation acts as a powerful bloc, particularly on the Occupied Palestinian Territory. African States, frequently coordinating through the African Group, bring the lived experience of being the most frequent subjects of country mandates and of International Criminal Court

attention, and have at times advanced sharp critiques of perceived bias while also leading on situations such as Sudan. The Latin American and Caribbean States are internally diverse. These coalitions are not fixed; they reconfigure issue by issue, and the skill of conference diplomacy lies in identifying where a particular State's interests on a particular situation diverge from its usual bloc.

6.5 The Funding and Legitimacy Crisis

A development of direct contemporary relevance is the financial and political crisis confronting the United Nations human rights machinery. The system entered the 2025 to 2026 period under severe budgetary strain, with a substantial shortfall in assessed contributions and the consequent risk to the staffing and continuity of investigative mandates, a situation the Secretary-General has characterized as an imminent financial crisis (AWID, 2026). Compounding this, the disengagement of a major contributor from parts of the human rights architecture, including the suspension of participation in elements of the Universal Periodic Review, has raised questions about the consistency and durability of multilateral commitment to the system. These pressures are not peripheral to the agenda; they bear directly on whether the Council can sustain the long-term documentation that real accountability requires, since commissions of inquiry and investigative mechanisms cannot preserve evidence across the years that prosecutions take if their funding is not secure.

7. Case Studies from Contemporary Conflicts

The following case studies are selected to illustrate the recurring legal and political problems of the agenda across a range of conflict types: belligerent occupation and intense urban bombardment, classic inter-State aggression, ethnically targeted atrocity by a non-State armed group, persecution and forced displacement, and protracted civil war marked by chemical attacks and siege. Each demonstrates the Human Rights Council's mechanisms in operation, the accountability gap in practice, and the geopolitical forces that determine whether protection is delivered. Delegates should treat the legal characterizations here as the findings of the cited bodies, which remain contested by the States concerned, and should be prepared to represent their own State's position on each.

7.1 The Occupied Palestinian Territory and Gaza

The hostilities that followed the attacks of 7 October 2023, in which Palestinian militants killed approximately 1,200 people in southern Israel and took hostages, and the ensuing Israeli military campaign in Gaza, became the defining accountability question before the Council during 2024 to 2026. The situation engages the full conceptual apparatus of the agenda: the law of belligerent occupation, the principles of distinction and proportionality under intense urban bombardment, the prohibition on starvation as a method of warfare in the context of siege and the obstruction of humanitarian aid, and the most serious legal characterization available, genocide.

The Independent International Commission of Inquiry on the Occupied Palestinian Territory, including East Jerusalem, and Israel, a standing body established by the Council in 2021 and chaired by the former High Commissioner and international judge Navi Pillay, presented a report to the Council's sixtieth session on 16 September 2025 concluding that Israel had committed

genocide against Palestinians in Gaza. The Commission found that Israeli authorities and forces had committed four of the five genocidal acts defined in the 1948 Genocide Convention: killing, causing serious bodily or mental harm, deliberately inflicting on the group conditions of life calculated to bring about its physical destruction, and imposing measures intended to prevent births. It assessed that genocidal intent was the only reasonable inference from the totality of the evidence, relying in part on statements by senior Israeli officials, and it called for genocide charges to be added to the existing International Criminal Court arrest warrants for Israeli leaders (Office of the United Nations High Commissioner for Human Rights, 2025a). Israel rejected the report as distorted and false. The legal characterization remains the subject of intense dispute and parallel proceedings.

The case illustrates several themes of the agenda with unusual clarity. It demonstrates the layering of accountability fora: the Commission of Inquiry under the Human Rights Council produces findings and preserves evidence; the International Court of Justice considers questions of State responsibility under the Genocide Convention, including provisional measures ordered during the hostilities; and the International Criminal Court pursues individual criminal responsibility through arrest warrants. It demonstrates the Security Council bottleneck, as the politics of the permanent membership constrained binding enforcement. And it demonstrates the limits of the Human Rights Council itself, since neither the Commission nor the Council can compel any State to act, and the findings function as authoritative documentation that may inform prosecutions and State obligations rather than as enforceable orders (Global News, 2025). The siege conditions and obstruction of humanitarian access also placed the prohibition on starvation as a method of warfare, and the affirmative obligations of an occupying power toward the civilian population, at the centre of legal debate.

7.2 Ukraine

The full-scale invasion of Ukraine by the Russian Federation, launched on 24 February 2022, presents the agenda's clearest contemporary example of inter-State armed conflict and of the crime of aggression as the gateway to mass civilian harm. The Council established the Independent International Commission of Inquiry on Ukraine in March 2022, chaired by Erik Mose and including Pablo de Greiff and Vrinda Grover. Across successive mandates, the Commission has documented a wide range of violations committed predominantly by Russian authorities, while also investigating and reporting violations attributed to Ukrainian authorities, including indiscriminate attacks and abuses against persons accused of collaboration, a practice that underlines the Commission's claim to impartiality (Office of the United Nations High Commissioner for Human Rights, 2025b).

The Commission's findings have progressively characterized Russian conduct in the gravest terms. It concluded that Russian authorities committed torture as a crime against humanity, pursuant to a coordinated State policy applied to civilians and prisoners of war alike, and that enforced disappearances of Ukrainian civilians likewise amounted to crimes against humanity. In reports to the General Assembly and the Council during 2025 and into 2026, it found that the systematic drone attacks targeting civilians in the Kherson region constituted crimes against humanity of murder and war crimes, that the deportation and forcible transfer of Ukrainian children amounted to crimes against humanity, and that Russian authorities had coordinated actions to drive Ukrainian civilians from their homes (Office of the United Nations High Commissioner for Human Rights, 2025b). The Commission visited Kyiv in November 2025 to reiterate these findings directly.

Ukraine illustrates the agenda's theme of accountability architecture in several ways. The deliberate drone targeting of civilians in Kherson, described by investigators as the hunting of civilians, is a stark instance of attacks failing the principle of distinction. The forcible transfer of children engages both the war crime and the crime against humanity of deportation, and connects to the International Criminal Court arrest warrant issued in respect of that conduct, demonstrating again the interplay between the Council's fact-finding and the Court's prosecutorial function. The Commission's limited access to occupied territory, and Russia's refusal to cooperate, illustrate the consent problem and have prompted calls for stronger mechanisms able to operate independently of State consent, including through satellite verification and support for local documentation networks.

7.3 Sudan: Darfur and the Siege and Fall of El Fasher

The war that erupted in April 2023 between the Sudanese Armed Forces and the paramilitary Rapid Support Forces produced what humanitarian agencies have described as one of the gravest civilian protection crises in the world, and it offers the agenda's clearest recent example of ethnically targeted atrocity committed by an organized non-State armed group, with alleged external State sponsorship. The conflict engages the law of non-international armed conflict, the prohibition on starvation through siege, and the question of State responsibility for proxies.

After a siege lasting roughly eighteen months, El Fasher, the last major army stronghold in Darfur, fell to the Rapid Support Forces on 26 October 2025. The High Commissioner reported receiving multiple alarming accounts of atrocities following the takeover, including summary executions and ethnically motivated killings of civilians and of persons hors de combat, and human rights monitors verified video evidence of fighters celebrating over bodies and executing apparent

civilians (Human Rights Watch, 2025b). On 14 November 2025, at the request of a core group of States led by the United Kingdom together with Germany, Ireland, the Netherlands, and Norway, and with the support of all European Union Member States, the Council held a special session, its thirty-eighth, on the situation in and around El Fasher. The High Commissioner told the Council that the atrocities had been foreseen and were preventable but were not prevented, and that bloodstains on the ground in El Fasher had been photographed from space (UN Geneva, 2025).

The special session adopted a resolution by consensus condemning the atrocities committed by the Rapid Support Forces and mandating the Independent International Fact-Finding Mission for the Sudan to conduct an urgent inquiry, to identify those responsible where possible, and to support accountability, with a report due to the Council's sixty-second session. Notably, while the resolution was adopted without a vote, Sudan, China, Ethiopia, and Cuba disassociated themselves from the paragraphs concerning the Fact-Finding Mission, a revealing illustration of the sovereignty and non-interference critique operating even amid consensus condemnation. The resolution condemned external interference fuelling the conflict but did not name the external sponsors, although civil society and the core group pressed for the role of external actors, including the United Arab Emirates, to be assessed and for information to be shared with the International Criminal Court, which retains jurisdiction over Darfur through the earlier Security Council referral (International Service for Human Rights, 2025). Sudan thus demonstrates both the responsiveness of the Council's special-session mechanism to active escalation and the persistent limits imposed by the politics of naming responsible State sponsors.

7.4 Myanmar

Myanmar illustrates two phases of the agenda's concerns: the persecution and mass forced displacement of a civilian population, and the subsequent collapse into widespread armed conflict following a military coup. The 2017 military operations against the Rohingya population in Rakhine State, which drove more than seven hundred thousand people into Bangladesh, were characterized by a Council-mandated fact-finding mission as carried out with genocidal intent and as amounting to crimes against humanity, and they gave rise to proceedings before the International Court of Justice under the Genocide Convention and to an International Criminal Court investigation into the cross-border element of the deportation. The military coup of February 2021 then triggered nationwide armed conflict, with the security forces conducting airstrikes and operations against civilian areas.

Myanmar is significant for the agenda chiefly because of the accountability innovation it produced. The Independent Investigative Mechanism for Myanmar, established by the Council in 2018, is a standing body whose mandate is not merely to report but to collect, consolidate, preserve, and analyse evidence of the most serious international crimes to evidentiary standards usable in criminal proceedings, and to prepare case files for prosecution in national, regional, or international courts. Together with its predecessor mechanism for Syria, it pioneered the model of the standing investigative and accountability mechanism that bridges the gap between fact-finding and prosecution, a model the Council extended to Afghanistan in 2025. Myanmar thus demonstrates how the Council's documentary function can be institutionalized into something approaching a permanent prosecutorial support structure, even where the prosecuting forum does not yet exist.

7.5 Syria

The Syrian conflict, which began in 2011, is the protracted civil war against which much of the modern accountability architecture was forged, and it remains a live concern of the Council into 2026. It engages every dimension of the agenda: the use of prohibited chemical weapons against civilian areas, the siege and starvation of populations, the systematic torture and enforced disappearance of detainees, and indiscriminate aerial bombardment. The Independent International Commission of Inquiry on the Syrian Arab Republic, the Council's longest-standing such body, has documented violations by all parties across more than a decade.

Syria's principal contribution to the agenda is the creation of the International, Impartial and Independent Mechanism, established by the General Assembly in 2016 to collect and preserve evidence and to prepare case files to support prosecutions. The IIIM was the prototype for the standing accountability mechanism model, born precisely because the Security Council route to the International Criminal Court was vetoed and an alternative path to preserve the possibility of eventual justice was required. The relevance of Syrian accountability did not end with the change of government: the Council's sixty-first session in early 2026 extended the Commission of Inquiry's mandate with a focus on supporting domestic accountability and transitional justice, and the Commission reported on grave violations in Suwayda, underscoring that accountability obligations persist through political transition and that the documentary record assembled during the conflict becomes the foundation for transitional justice afterward (Office of the United Nations High Commissioner for Human Rights, 2026).

7.6 Further Situations in Brief

Ethiopia (Tigray). The conflict in northern Ethiopia from 2020 produced large-scale civilian harm, including ethnically targeted violence, sexual violence as a weapon of war, and the use of starvation through the obstruction of humanitarian access. A Council-mandated International Commission of Human Rights Experts on Ethiopia documented violations by multiple parties before its mandate was discontinued, an outcome that itself illustrates how the politics of the Council can curtail an investigative mandate before its accountability work is complete.

Yemen. The conflict that escalated in 2015 generated a catastrophic civilian toll through airstrikes, blockade, and the collapse of essential services. The Group of Eminent Experts on Yemen documented violations by all parties, including by a coalition of States, before the Council declined to renew its mandate in 2021, a decision widely read as a case study in how diplomatic and economic pressure can defeat scrutiny of powerful States and their partners, and a frequently cited example in the selectivity critique.

Afghanistan. On 6 October 2025 the Council adopted by consensus a resolution, led by the European Union, creating a new independent accountability mechanism for Afghanistan, mandated to collect and preserve evidence of war crimes, crimes against humanity, and other grave abuses, including the Taliban's gender persecution of women and girls, and to prepare files for future prosecution. The mechanism follows the Syria and Myanmar model and represents the most recent extension of the standing-investigative-body approach, demonstrating that the institutional toolkit for closing the accountability gap continues to develop even amid the system's financial strain (Human Rights Watch, 2025a).

8. Ongoing Efforts to Institutionalize Civilian Protection

The agenda asks not only how civilians are harmed but what is being done, and what more might be done, to make their protection in active escalation zones systematic rather than ad hoc. The following are the principal lines of contemporary effort, each of which offers material for operative resolution clauses.

8.1 The Protection of Civilians Framework

The protection of civilians has matured from a humanitarian aspiration into a structured policy and operational agenda within the United Nations, anchored in a series of Security Council resolutions beginning with Resolution 1265 of 1999 and developed through successive thematic resolutions on civilians, on women, peace and security, and on children and armed conflict. Within the Human Rights Council, the protection agenda is advanced through thematic resolutions and through Special Procedures mandates that monitor specific threats to civilians. The challenge is to translate the framework's normative commitments into real-time protective effect, particularly where peacekeeping forces are absent or where the parties to the conflict are themselves the source of the harm.

8.2 Standing Investigative and Accountability Mechanisms

The most significant institutional innovation of the past decade is the standing investigative and accountability mechanism, pioneered for Syria and Myanmar and extended to Afghanistan in 2025. Unlike a commission of inquiry, which reports and recommends, these bodies collect, consolidate, preserve, and analyse evidence to the standard required for criminal proceedings, and prepare prosecution-ready case files for whatever competent court may eventually exist. They are

the system's structural answer to the time lag and the consent problem: they keep the evidentiary record alive across the years a prosecution takes, and they operate independently of the cooperation of the State concerned. The momentum behind this model, and the question of whether it should be generalized into a permanent standing capacity rather than recreated situation by situation, is a central debate the agenda invites delegates to engage.

8.3 Technology and Open-Source Investigation

The methodology of accountability has been transformed by the maturation of open-source investigation. Satellite imagery now documents mass graves, the destruction of civilian infrastructure, and, as the High Commissioner noted in the El Fasher session, even bloodstains visible from space. The geolocation and chronolocation of photographs and video, the forensic authentication of digital material, and the analysis of intercepted communications allow investigators to establish facts remotely where physical access is denied. These methods partially overcome the consent problem, but they raise their own questions of evidentiary reliability, of the chain of custody required for material to be admissible in court, and of the protection of the witnesses and local documenters whose contributions remain indispensable. Proposals to integrate verified satellite analysis and to support local documentation networks feature prominently in contemporary reform discussions.

8.4 Arms Transfers and the Prevention of Atrocity

A distinct preventive lever concerns the supply chain of the weapons used against civilians. The Arms Trade Treaty obliges States Parties to refuse arms transfers where they have knowledge that the arms would be used in genocide, crimes against humanity, or war crimes, and obliges an exporting State to assess the risk that transferred arms would be used to commit or facilitate serious

violations. The complicity of arms-supplying States in the violations committed with their weapons, and the obligation of all States not to aid or assist an internationally wrongful act under the law of State responsibility, connect the conduct of the battlefield to the policy decisions of States far from it. This connection offers a route to accountability that reaches beyond the immediate parties to a conflict.

8.5 The Responsibility to Protect and Prevention

Notwithstanding the political backlash that followed the Libya intervention, the preventive dimension of the responsibility to protect remains an active institutional commitment, advanced through early-warning analysis, the work of the Special Adviser on the Prevention of Genocide, and the Council's own monitoring mechanisms, which can identify atrocity-risk indicators before violations peak. The Human Rights Council membership carries, under Resolution 60/251, an obligation to uphold the highest standards of human rights, and the Council's mechanisms contribute directly to early warning and prevention. The unresolved question is how to convert early warning into timely action when the political will for protective response is absent, the gap that the El Fasher atrocities, foreseen yet unprevented, so painfully exposed.

9. Indicative Bloc Positions

The following sketches the typical orientations of the principal coalitions. They are starting points for research, not substitutes for it, and a State's position on a specific situation frequently diverges from its general posture. Delegates must verify their own State's voting record and public statements.

Bloc / Grouping	General orientation on the agenda
Western European and Other States and like-minded partners	Champion country-specific mandates, commissions of inquiry, and standing accountability mechanisms; support International Criminal Court referrals; emphasize individual criminal responsibility and the indivisibility of the civilian protection rules.
China and States emphasizing sovereignty	Stress non-interference, dialogue, technical assistance, and capacity-building; sceptical of country-specific mandates and investigations imposed over State objection; emphasize economic and social rights and warn against politicization and selectivity.
Russian Federation and aligned States	Reject investigative mandates targeting themselves or allies as politically biased; invoke sovereignty and procedural objections; frequently decline cooperation with commissions of inquiry.
Organisation of Islamic Cooperation	Act as a cohesive bloc, particularly on the Occupied Palestinian Territory; press for accountability and for the gravest legal characterizations; lead resolutions on situations affecting Muslim populations.
African Group	Bring the experience of being frequent subjects of country mandates and Court attention; advance the selectivity and double-standards critique; at the same time lead on situations of grave concern such as Sudan, reflecting internal diversity.
Latin American and Caribbean States	Internally diverse; several are strong supporters of international criminal justice and the Court, while others prioritize sovereignty and non-intervention; often pivotal swing votes.

10. Questions a Resolution Must Address

A resolution on this agenda will be judged by whether it confronts the genuine difficulties rather than restating uncontroversial principles. Delegates should be prepared to answer the following.

13. How can the Council deliver protection during active escalation, in real time, given that its powers are recommendatory and the binding enforcement tools lie with a frequently paralysed Security Council?
14. By what mechanism can the accountability gap be narrowed where the State concerned refuses cooperation and the Security Council route to the International Criminal Court is blocked by veto?
15. Should the standing investigative and accountability mechanism model, developed for Syria, Myanmar, and Afghanistan, be generalized into a permanent capacity, and how would such a capacity be funded amid the present financial crisis?
16. How should the law clarify the boundary of direct participation in hostilities and the temporal scope of lost protection, so as to protect genuine civilians without granting impunity to fighters who hide among them?
17. How can the legitimacy-corroding perception of selectivity and double standards be addressed, so that accountability is applied consistently regardless of the power of the State responsible?
18. What obligations should attach to third States that supply arms, finance, or political cover to parties committing violations, and how can those obligations be enforced?
19. How can early warning be converted into timely protective action, so that foreseeable atrocities such as those at El Fasher are prevented rather than merely documented after the fact?
20. How should the affirmative obligations of occupying powers and besieging forces toward civilian populations, including the prohibition on starvation as a method of warfare, be monitored and enforced during ongoing hostilities?

11. Glossary of Key Terms

Term	Working definition
IHRL	International human rights law; protects persons at all times, in peace and war.
IHL	International humanitarian law; the law of armed conflict, applying only during conflict.
Lex specialis	Principle that the more specific rule governs the more general where they conflict.
Distinction	Obligation to distinguish civilians and civilian objects from combatants and military objectives, attacking only the latter.
Proportionality	Prohibition on attacks causing incidental civilian harm excessive in relation to the concrete and direct military advantage anticipated.
Precaution	Obligation to take all feasible measures to spare civilians in attack and defence.
Combatant's privilege	Immunity of a privileged belligerent from prosecution for lawful acts of war, with prisoner-of-war status on capture.
Unprivileged belligerent	A person who participates directly in hostilities without combatant status, losing protection while participating and gaining no immunity, but retaining humane-treatment guarantees.
Direct participation in hostilities (DPH)	Conduct meeting the threshold of harm, direct causation, and belligerent nexus, by which a civilian loses protection against attack for the duration of participation.
Continuous combat function	ICRC concept under which members of an organized armed group whose continuous role is fighting may be targeted throughout that role.
Hors de combat	Out of combat through wounds, sickness, surrender, or capture; attack is prohibited.
Attribution	The rule linking conduct to a State for the purposes of State responsibility.
Command responsibility	Criminal liability of a superior for subordinates' crimes the superior knew or should have known of and failed to prevent or punish.
Erga omnes / jus cogens	Obligations owed to the international community as a whole; peremptory norms permitting no derogation.
Commission of inquiry	A temporary independent body that establishes facts and applies legal characterizations without delivering binding verdicts.
IIIM-type mechanism	A standing body that collects and preserves evidence to prepare prosecution-ready case files.

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End of Background Guide